

HOUSE No. 978

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick Joseph Kearney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect open space, historical resources, and community housing from coastal threats.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/7/2025</i>

HOUSE No. 978

By Representative Kearney of Scituate, a petition (accompanied by bill, House, No. 978) of Patrick Joseph Kearney for legislation to protect open space, historical resources, and community housing from coastal threats. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 838 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect open space, historical resources, and community housing from coastal threats.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 2 of chapter 44B, as appearing in 2020 Official Edition, is hereby amended by
2 striking out the definition "preservation" in line 66 and inserting in place thereof the following
3 definition:-

4 "Preservation", protection of personal or real property from injury, harm or destruction,
5 including but not limited to the construction, alteration, or rehabilitation of beaches, dunes,
6 seawalls, and other coastal infrastructure for the purpose of protecting open space, historical
7 resources, or community housing from flooding, sea-level rise, and storm surge.